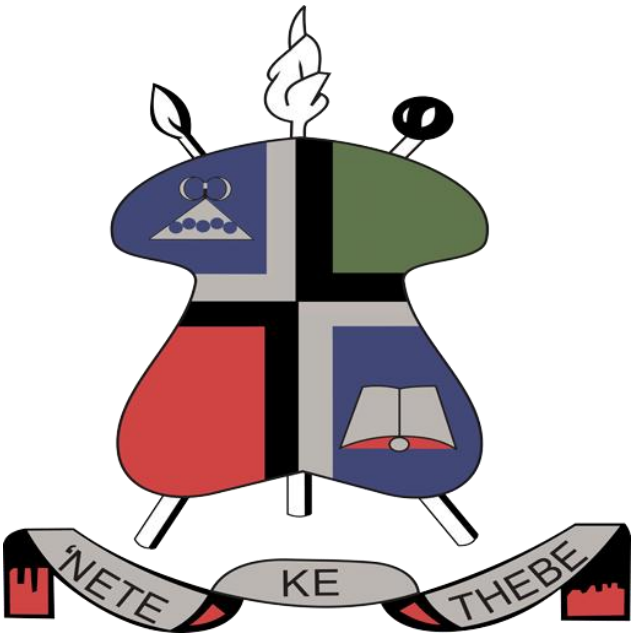
NATIONAL UNIVERSITY OF LESOTHO

FACULTY OF LAW



ASSIGNMENT 1: IN YOUR COMMUNITY (COUNTRY), THERE ARE NORMS WHICH ARE BACKED AND ENFORCED BY THE STATE. OTHER NORMS ARE NOT. IDENTIFY AND EXPLAIN FIVE NORMS WHICH ARE BACKED AND ENFORCED BY THE STATE AND FIVE NORMS WHICHARE NOT. GIVE REASONS WHY THE STATE'S APPROACH TOWARDS THESE NORMS IS DIFFERENT.

L1301: INTRODUCTION TO LAW

STUDENT NUMBER: 202509461

12th SEPTEMBER 2025

INTRODUCTION

Lesotho as a Kingdom operates inside a very complex normative environment that encompasses both state-sanctioned legal provisions and traditional customary practices. This duality creates a unique legal landscape where formal statutory law coexists with indigenous customary law, each carrying different degrees of state endorsement and enforcement mechanisms. This essay will focus mainly on five norms which are backed and enforced by the State and five norms that are not backed by the State. I will further analyse by giving reasons why the States approach towards these norms is different.

Therefore, it is of crucial importance to briefly indicate that norms are social rules within a certain community which define what is expected of individuals in certain situations. They play a pivotal role in that they measure what is seen as normal in the society and they govern the acceptable behaviour in the social standards. It is to be noted that, norms vary from culture to culture and can be specific to a particular community. Some are explicit while others are implicit, violating them can result in negative consequences.

NORMS WHICH ARE BACKED AND ENFORCED BY THE STATE

Constitutional Supremacy and Democratic Governance

This norm is smartly backed and enforced by the state through judicial review mechanism, it prescribes fundamental values and principles of the State, "the Constitution of Lesotho 1993."[1]It also establishes the foundational norm of constitutional supremacy, that is, it is the supreme law of Lesotho as declared in Section 2 of the Constitution. Moreover, the constitution renders any law inconsistent with its provisions null and void (it is legally valid) due to such inconsistency.

This norm has been strengthened through landmark cases such as *Mosisili v Majoro*[2] ,where the Court of Appeal upheld constitutional provisions regarding parliamentary procedures and governmental transitions. The enforcement of this norm by the State is justified through the establishment of constitutional courts and the regular exercise of judicial review powers. As demonstrated in the case of *Ramolibedi v Prime Minister*[3], the High Court of Lesotho, actively scrutinized the government's actions against constitutional standards, by making sure that democratic governance principles are well-kept through state-sanctioned judicial intervention.

Criminal Law Enforcement

The Penal Code Order 2010[4] illustrates the norms that are backed by the State through its comprehensive criminalization of various conducts considered to be harmful to the society. The State's dedication by enforcing criminal law is illustrated through the establishment of prosecution services, police forces, and correctional facilities.

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[1] Constitution of Lesotho 1993, available at: http://www.gov.ls/documents/Constitution1993.pdf

[2] Mosisili v Majoro [2017] LSCA 08, Lesotho Law Reports.

[3]Ramolibeli v Prime Minister [2014] LSHC 41, High Court of Lesotho.

[4] Penal Code Order 2010, Legal Notice 9 of 2010.

The case of *R v Mokhele*[5], demonstrates how the state actively prosecutes criminal behaviour, by ensuring that societal norms regarding personal safety and property rights are maintained through coercive state power.

The Director of Public Prosecutions, operating under the Director of Public Prosecutions Act 1984[6], acts on behalf of the state's institutional commitment to criminal law enforcement. This norm is backed by the state's monopoly on legitimate violence and its capacity to impose punishments and retributions which can later result into imprisonment.

Property Rights Protection

This norm establishes broader and comprehensive property rights that are actively protected by state institutions as indicated in the Land Act 2010.[7] The norm of the right to private property protection is backed and enforced through land registration systems, dispute resolution, and judicial remedies for property violations. In the case of, *Lesotho Evangelical Church v Tau*[8], the High Court demonstrated the state's commitment to protect rights to property by adjudicating land disputes and enforcing property ownership claims.The State's position to back and enforce norms of property rights extends to both moveable and immoveable property, with enforcement mechanisms including civil remedies, criminal sanctions for theft, and administrative procedures for property registration and transfer.

Contract Law Enforcement

Commercial law norms, in particular, those relating to agreement enforcement, gets their substantial state backing through the Roman-Dutch common law system adopted by Lesotho. The High Court regularly enforces contractual obligations, as seen in *Lesotho Bank v Mosia*[9] where commercial disputes are solved by the State through judicial mechanisms. Furthermore,

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[5] R v Mokhele [2018] LSHC 23, High Court Criminal Division.

[6] Director of Public Prosecutions Act 1984, Act 2 of 1984.

[7] Land Act 2010, Act 8 of 2010.

[8] Lesotho Evangelical Church v Tau [2016] LSHC 15, High Court Civil Division.

[9] Lesotho Bank v Mosia [2019] LSHC 33, High Court Commercial Division.

The Companies Act of 2011[10], demonstrates state backing of commercial norms by establishing corporate governance standards and enforcement mechanisms for business operations. The State's approach in backing and enforcing contract is reflected in its commitment to economic stability and commercial confidence.

Civil Rights Protection

The norm of civil rights protection as backed and enforced by law is reflected int Bill of Rights found in Chapter II of the Constitution which establishes fundamental rights norms that are actively protected by state institutions. The norm human dignity, right to privacy, non-discrimination, freedom of expression, and due process rights are enforced through constitutional litigation and human rights mechanisms. The case of *Thabane v Attorney General*[11] elaborate on show the State's judicial system protects civil liberties against governmental overreach.The formation of institutions such as the Ombudsman and human rights commissions exemplifies how the State through its institutions commitments itself to protect these constitutional norms through dedicated enforcement mechanisms.

NORMS THAT ARE NOT BACKED BY THE STATE

Traditional Marriage Negotiation Ceremonies (Customs)

In the traditional marriage customs among Basotho, practices such as *bohali* (bride price) and customary marriage ceremonies, function mostley without depending on the state coercion mechanisms. Thus, these norms are accepted by the communities and traditional authorities structures without being enforced by the state. The *bohali* practice as indicated, functions through family negotiations and recognition of the community instead of judicial enforcement of specific customary obligations. It is without doubt that, Marriage Act 1974[12] recognizes customary marriages,but then the specific traditional practices surrounding marriage negotiations and ceremonies are governed by customary law rather than State enforcement.

Communal Grazing Rights *(Mohoang o*r *Leboella*)

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[10] Companies Act 2011, Act 3 of 2011.

[11] Thabane v Attorney General [2015] LSHC 28, High Court Constitutional Division.

[12] Marriage Act , Act 10 of 1974.

Grazing right is the right of a user to allow their livestock to feed or graze in the given area. In Lesotho, especially in rural areas traditional communal grazing practices operate according to customary norms that predate formal land legislation. Despite the Land Act 2010's provisions, many communal grazing rights are consistently governed by traditional allocation systems and are managed by chiefs and community elders in their respective villages rather than being backed and enforced by the State. These norms at times focus on community consensus and traditional dispute resolution rather than state enforcement. Where violations and misunderstandings arise, such matters are typically addressed through traditional courts (*lekhotla la sechaba*) rather than formal judicial proceedings.

Traditional Healing Practices

The traditional healing and medicinal practices operate according to customary norms that exist independently of formal health regulation. While the Medical, Dental and Pharmacy Act 1998[13]regulates formal healthcare, traditional healing continues to be governed by customary knowledge systems and community recognition of traditional healers (*lingaka*).

These norm's legitimacy is derived from cultural acceptance rather than state licensing how the practice is to be done. In this regard, we can also take *lebollo, ho tharisa,ho upa mabele, ho thibela letolo* as a typical example, where thers prsctices are done by traditional healers and community members in collaboration with chiefs without State enforcement.

Customary Inheritance Practices (in particular, livestock and traditional assets)

Traditional inheritance customs among Basotho communities often operate independently of formal succession laws, as they believe more on patriarchal succession. Hence, these custom practices rely on elderly mediation and community acceptance rather than formal probate procedures or state enforcement. Even though the Administration of Estates Proclamation 1935[14] provides formal mechanisms for estate administration, customary inheritance practices, particularly regarding livestock and traditional assets, continue to be governed by family and community norms.

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[13] Medical, Dental and Pharmacy Act 1998, Act 13 of 1998.

[14] Administration of Estates Proclamation 19 of 1935.

Traditional Conflicts Resolutions

This norm indicates how parallel is the traditional dispute resolutions mechanisms done by the court of chiefs and community interaction operate parallel to that of the State or formal judicial systems. The Chiefs Act 1968[15] takes in recognition the traditional authority but it does not necessarily enforce traditional conflict resolution norms that obtain their legitimacy from community acceptance instead of State backing. Traditional reconciliation practices, entails, compensation ceremonies and community healing rituals that operate according to customary norms existing independently from formal legal enforcement mechanisms.

REASONS WHY THE STATE'S APPROACH TOWARDS THESE NORM IS DIFFERENT

The State's approach towards these norms is different because it reflects several jurisprudential and practical considerations. State-backed and enforced norms universally-align with constitutional principles, international legal obligations, and modern governance requirements. "The State's priority in enforcing these norms lie in the assurance of political stability, economic development, and protection of fundamental rights."[16]

Thus, on the other hand, non-state-backed norms often represent traditional and cultural practices which may conflict or not align with contemporary legal standards and can only operate effectively and sufficiently through existing community mechanisms without the need for State intervention. I would also think that the State is reluctant to fully enforce certain traditional norms because that can also reflect concerns about potential conflicts with constitutional principles, regarding gender equality and individual rights, as our country is patriarchal in nature.

The co-existence of State backed (forced) and non-State-backed (not forced) norms reflects Lesotho's normative system as unique in its position of being a constitutional monarchy that is aiming at the balance of modern legal requirements with traditional cultural practices. Therefore, this motive of approach broadens the legal pluralism while maintaining constitutional supremacy in areas holding essential modern governance.

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[15] Chiefs Act 1968.

[16] R. C.Ellickson, *Oder without Law on how to settle disputes*, 1991, 167-8.

CONCLUSION

The normative landscape in Lesotho demonstrates a sophisticated balance between state-enforced legal standards and community-maintained traditional practices. State-backed norms primarily focus on constitutional governance, criminal justice, property rights, commercial law, and civil liberties - areas essential for modern state functioning. Non-state-backed norms largely encompass traditional cultural practices that continue to operate through community mechanisms.

This differential approach reflects the state's strategic prioritisation of enforcement resources while respecting cultural autonomy in areas where traditional mechanisms remain effective. The challenge for Lesotho's legal system lies in managing potential conflicts between these normative systems while maintaining both constitutional integrity and cultural authenticity.

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